Noe Yannes Espinoza-Jaimes
422 Circulo Cisne #B
Rio Rico, AZ 85648
Telephone: (531) 250-3955
Email: exdc2019@outlook.com
Plaintiff Pro Se

**UNITED STATES DISTRICT COURT**
**DISTRICT OF ARIZONA**

| | |
|---|---|
| Noe Yannes Espinoza-Jaimes,<br><br>Plaintiff,<br><br>v.<br><br>Andrew Coggins, et al.,<br><br>Defendants. | Case No. 4:26-CV-00245<br><br>**SECOND AMENDED COMPLAINT**<br><br>**HONORABLE: ANGELA MARTINEZ** |

## I. PARTIES

1. Plaintiff Noe Yannes Espinoza-Jaimes is a resident of Santa Cruz County, Arizona.

2. Defendant Andrew Coggins was, at all relevant times, a federal Police law-enforcement USBP Agent acting under color of federal authority and exercising federal investigative, detention, search, seizure, and enforcement powers over Plaintiff.

3. Plaintiff alleges that, at all relevant times, each Defendant participated in the events described herein.

## II. JURISDICTION

4. This action arises under the Constitution and laws of the United States, including *Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics*, 403 U.S. 388 (1971). This Court has jurisdiction pursuant to 28 U.S.C. § 1331.

*Ashcroft v. Iqbal, 556 U.S. 662, 678 (2009); Bell Atlantic Corp. v. Twombly, 550 U.S. 544, 570 (2007).* Plaintiff's allegations satisfy this standard.

5. Plaintiff further alleges that the Court possesses supplemental jurisdiction pursuant to 28 U.S.C. § 1367 over related CAFCC state-law claims because those claims arise from the same nucleus of operative facts, events, transactions, medical treatment, custodial transfers, continuity-of-care issues, and resulting injuries described herein. Following the alleged vehicle-window breach and resulting eye injury and mental health distress while Plaintiff remained in USBP federal custody, Plaintiff was transported to Canyon Vista Medical Center for emergency evaluation and treatment. Records generated during that encounter documented complaints of left-eye pain, ophthalmic treatment, psychiatric medication needs, discharge instructions, educational materials, follow-up recommendations, and return precautions. Plaintiff further alleges that significant questions exist regarding the modification, generation, transmission, preservation, receipt, and implementation of those materials following discharge while Plaintiff remained continuously in custody. Plaintiff alleges that subsequent custodial providers, CAFCC, later reported that relevant eye-treatment and mental-health records could not be located, thereby linking the emergency-room treatment, custodial transfer, continuity-of-care issues, and resulting injuries into one continuous factual sequence.

**PLAINTIFF'S CLAIM DOES NOT PRESENT A NEW BIVENS CONTEXT**

5A. The threshold question under *Bivens v. Six Unknown Named Agents, 403 U.S. 388 (1971),* is whether this case presents a "new context" requiring extension of the implied damages remedy. It does not. This case involves a routine Fourth Amendment unlawful seizure — a roadside investigatory stop, prolonged detention, and use of force — conducted by line-level "Federal Agent" and "Police" in a public highway location in Sonoita, Arizona, approximately

29 miles from the nearest Port of Entry in Nogales. "Agent Coggins own descriptions of his role are consistent with ordinary domestic Federal law-enforcement activity, which supports Plaintiff's argument that this case concerns a routine seizure and use of force rather than the type of border-security context discussed in *Egbert v. Boule*."

Unlike *see Egbert v. Boule*, which arose from a foreign-national investigation at property adjacent to an international border, this case concerns a roadside stop of a United States citizen on a public roadway. At a minimum, *see United States v. Brignoni*-Ponce requires specific and articulable facts supporting reasonable suspicion for a roving-patrol stop. Plaintiff alleges that no such immigration-related facts existed and that the stop instead relied upon appearance-based assumptions, a perceived gender mismatch with the registered owner, Surname mismatch as highlighted by Federal Agent Coggins and behavior equally consistent with innocent conduct.

Plaintiff's claims arise from the conduct of individual federal officers during a roadside stop, detention, search, and use of force. The relevant inquiry concerns the constitutionality of the challenged conduct, not merely the identity of the federal agency employing the officers.

At a minimum, even under the special rules governing Border Patrol roving-patrol stops, agents must possess specific and articulable facts reasonably suggesting an immigration violation or other criminal activity. *See United States v. Brignoni-Ponce, 422 U.S. 873 (1975).* The Supreme Court has never authorized Border Patrol agents to conduct roving stops based merely upon generalized appearance-based assumptions, perceived ethnicity, perceived immigration status, Mexican Ancestry, heritage or other non-individualized characteristics. Here, Plaintiff alleges that the stop was initiated not on the basis of specific immigration-related facts, but rather on appearance-based assumptions, a perceived mismatch between Plaintiff and the registered owners sex, and generalized behavioral observations that were equally consistent with innocent

conduct. Even under the more permissive standards applicable to roving-patrol stops, such generalized characteristics do not satisfy the requirement of individualized, articulable suspicion.

This places the stop well within the interior of Arizona and far outside the border-search or immigration-enforcement context that drove the Supreme Court's analysis in *Egbert v. Boule*. That is the precise context recognized in Bivens itself, and this Court is accordingly not being asked to extend Bivens, but to apply it in its original and well-established context.

CBP's statutory authority to conduct roving patrols within 100 miles of the border expands the geographic scope of its jurisdiction; it does not expand the constitutional latitude of individual officers. The 100-mile zone determines where Border Patrol may operate — not what they may constitutionally do once they arrive. The Supreme Court has never held that officers operating within that zone are exempt from Fourth Amendment limits, and the proximity of this stop to the border does not transform a routine domestic seizure into a new Bivens context.

The conduct at issue was not part of any high-level policy, national-security function, border-search authority, or immigration adjudication. This case does not implicate foreign policy, sensitive governmental interests, or executive policymaking. Plaintiff's appearance — including his complexion, long hair worn in a bun, and perceived gender — was used by Agent Coggins in assessing whether Plaintiff matched the registered owner of the vehicle. Agent Coggins expected a female registered owner and, upon observing Plaintiff, relied in part on this appearance-based discrepancy in initiating an "immigration inspection." Plaintiff does not challenge the existence of Border Patrol authority. Plaintiff challenges the misuse of that authority — specifically, conduct by individual officers that exceeded clearly established constitutional limits. This distinction is critical under *Ziglar v. Abbasi, 582 U.S. 120 (2017),*

which cautions against extending Bivens into policy-level decision-making, not into cases involving alleged street-level coordinated constitutional violations by individual officers.

**Bivens Is Required Because the Federal Tort Claim Act Cannot Address Coordinated Constitutional Violations**

5B. The Federal Tort Claims Act is not an adequate substitute for a Bivens remedy. The Federal Tort claim act provides a cause of action only against the United States for state-law torts and does not permit recovery against the individual officers whose unconstitutional conduct caused the harm. As such, it neither deters individual misconduct nor provides a remedy for coordinated violations of deprivation of constitutional rights.

Moreover, the Federal Tort Claim does not provide a cause of action for violations of the Fourth Amendment itself. Plaintiff's claims arise not merely from physical injury or state-law torts, but from an allegedly coordinated unreasonable seizure, prolonged detention, unjustified use of force, and resulting deprivation of liberty by multiple federal officers acting in concert during a single encounter. Those constitutional injuries are distinct from the tort remedies available under the Federal Tort Claim Act and require an avenue of redress against the individual actors responsible for the alleged coordinated violations.

To the extent Plaintiff alleges coordinated participation by multiple officers in the detention, escalation, use of force, and arrest, the Federal Tort Claim act provides no mechanism for imposing individual constitutional accountability. A Bivens remedy is therefore necessary to address the alleged constitutional violations and to deter future misconduct by individual federal officers and actors.

## III. STATEMENT OF FACTS

### A. Prior Mental-Health History, Prior Complaints, Protected Activity, and Retaliatory-Motive Context

6. Before the encounter with United States Border Patrol ("USBP") and U.S. Customs and Border Protection ("CBP") personnel and the events giving rise to this action, Plaintiff had documented psychiatric conditions requiring treatment, medication management, and mental-health services, and a history of mental-health treatment. Plaintiff had a known history of Mental Illness, including symptoms of anxiety, panic, emotional distress, tunnel vision, and vulnerability during stressful events.

7. Plaintiff has a documented history of black-out episodes and tunnel vision during periods of severe emotional distress, including treatment and court-supervised mental-health proceedings in Linn County, Iowa beginning in or about 2014–2017.

8. Plaintiff alleges that prior traumatic interactions with unknown and unidentified federal law-enforcement personnel, including an earlier incident in Amado, Arizona, contributed to ongoing psychiatric vulnerability, anxiety, panic symptoms, and emotional distress.

9. Although Plaintiff remained functional in the community, he continued to experience psychiatric vulnerability and was susceptible to deterioration during periods of significant stress, custody, medical crisis, and uncertainty concerning personal safety and health.

10. Plaintiff previously filed complaints, FOIA requests, and administrative complaints arising from an earlier encounter in the Arivaca Road, Amado, Arizona area involving unidentified individuals believed to be U.S. Border Patrol personnel operating from unmarked vehicles.

11. Plaintiff alleges that the individuals did not adequately identify themselves, engaged in detention and search activity, and caused Plaintiff to fear for his life and safety.

Plaintiff observed at least one individual displaying a Marine Corps-related patch or insignia, but Plaintiff remained unable to determine the precise identity, agency affiliation, or authority of all individuals involved. Plaintiff alleges that the encounter involved detention, search activity, intimidating law-enforcement conduct, and circumstances that caused Plaintiff to fear imminent harm.

12. Plaintiff subsequently sought clarification regarding the encounter and later received investigative materials concerning those complaints. Plaintiff was sufficiently concerned by the encounter that Plaintiff sought assistance from the Sheriff's Office of Santa Cruz County in an effort to determine the identity and authority of the individuals involved.

13. On May 30, 2009, members of a nativist, white-supremacist militia group disguised themselves as U.S. Border Patrol agents to gain access to a home in Arivaca, Arizona. Because historical and documented incidents involving individuals impersonating federal agents have occurred in southern Arizona, and because the individuals involved in Plaintiff's encounter operated from unmarked vehicles and did not adequately identify themselves, Plaintiff was unable to verify their lawful authority and reasonably feared for his safety and physical well-being. Plaintiff later received an investigative report concerning those FOIA complaints from Agent Andrew Coggins.

14. During the events at issue, Agent Coggins made remarks that Plaintiff understood as referencing the earlier Amado incident. Plaintiff therefore believes that Agent Coggins was aware of Plaintiff's prior complaints and protected activity and further believes that at least some other participating personnel were aware of Plaintiff's prior complaints, records requests, or administrative claims. Plaintiff believes that his prior complaints may have influenced Defendants' conduct once inside Sonoita AZ USBP Station.

15. Plaintiff is presently unaware when Agent Coggins obtained that information, how it was communicated, or the extent to which other agents or supervisors were aware of the prior complaints and seeks discovery regarding these matters and allegations.

**B. The Pretextual and Appearance-Based Stop of September 18, 2024**

**"USBP Federal Police Agent" Arrival Timelines and Report Contradictions:**

16. At approximately 11:10 a.m. on September 18, 2024, Agent Andrew Coggins was at an observation post in a 30-mph divided town corridor on SR-82 in Patagonia, Arizona (approx. 31.536636, -110.759887). Plaintiff alleges that the corridor is a safety-sensitive community zone rather than a highway environment, bordered by Richardson Park, the Senior Citizens of Patagonia center, and Patagonia Union High School, with regular pedestrian activity, elderly drivers, and school buses, and with no safe passing zones.

17. The stop occurred approximately 1,000 feet from the Sonoita Border Patrol Station.

18. Defendant Andrew Coggins initiated the stop. Plaintiff was traveling on Highway 82 away from his residence and was approximately 19 minutes and 15.6 miles from home at the time of the encounter. Plaintiff alleges that his travel was entirely consistent with ordinary local travel patterns and did not provide any individualized basis for suspicion. Plaintiff further alleges that his presence on Highway 82, standing alone, reflected lawful and commonplace travel rather than criminal activity.

19. Plaintiff's vehicle was registered to a woman, but the rental vehicle keys were handed by a Male and its registration originated in Casa Grande, Arizona. Plaintiff alleges that Defendant Andrew Coggins was aware that the registered owner was female before initiating the stop, and that, upon seeing Plaintiff—a Latino/Hispanic male with long hair worn in a bun—Coggins concluded that Plaintiff did not "match" the registered owner or the registered owner's

American-ancestry surname. Plaintiff alleges that this perceived mismatch was used as part of the justification for initiating an "immigration inspection."

20. Official investigative reports confirm that agents specifically flagged and highlighted the registered owner's non-Hispanic surname—MESCHEDE, Sarah May—originating out of Casa Grande, Arizona and requests discovery regarding this matter.

21. If Agent Andrew Coggins genuinely believed the registered-owner mismatch was meaningful, there were multiple innocent explanations available, including that the vehicle was being operated by a spouse, family member, authorized driver, borrower, or other lawful user or individual with permission to use the vehicle. Plaintiff contends that the existence of those obvious alternatives undermines any inference that the perceived mismatch, standing alone, provided individualized suspicion of criminal activity.

22. Plaintiff further alleges that, rather than considering commonplace explanations for the perceived driver-registration mismatch, Agent Andrew Coggins relied upon appearance-based assumptions concerning Plaintiff's ethnicity, surname heritage, appearance, and perceived immigration status. Plaintiff alleges that Defendant Andrew Coggins relied upon the perceived driver-registration ancestry-surname mismatch "MESCHEDE, Sarah" and appearance-based assumptions as part of the justification for initiating an "immigration inspection" and pretextual investigative stop, despite the absence of specific, articulable facts indicating criminal activity or immigration violations. Plaintiff contends that the stop was not supported by individualized suspicion tied to Plaintiff personally but instead resulted from generalized assumptions and non-individualized suspicion, rather than individualized reasonable suspicion.

23. Plaintiff further alleges that the perceived driver-registration mismatch was not treated as a neutral circumstance but instead was viewed through appearance-based assumptions

concerning Plaintiff's ethnicity and perceived immigration status, thereby contributing to the decision to continue the investigation despite the absence of individualized reasonable suspicion.

24. Plaintiff believes he disclosed his U.S. citizenship early in the encounter. Plaintiff alleges that post-hoc traffic related allegations into immigration-related questions were asked before or after that disclosure.

25. Plaintiff does not recall Agent Coggins identifying a registered-owner mismatch, speed fluctuations, vehicle-loading characteristics, or other immigration-related indicators during the initial encounter. Plaintiff further alleges that those additional factors first appeared in later reports and investigative materials, and that the stated justification for the stop shifted from a traffic-related rationale ("swerving") to an "immigration inspection" without any immigration-related basis. Plaintiff characterizes these shifting explanations as post hoc.

26. Prior to and during the stop, Defendant Andrew Coggins communicated with Tucson Sector Communications and other CBP personnel and conducted records inquiries concerning the vehicle and registered owner. Plaintiff is presently unaware of any immigration-related information known to Defendants before the stop and seeks discovery concerning all database queries, records checks, communications, and information relied upon in initiating the stop.

27. Substantial timestamp discrepancies and omissions exist among the responding officers' reports regarding the arrival of specialized units:

- Stephen R Lozano responds at 11:20 AM.
- Andrew Coggins coordinates with Tucson Sector at 11:21 AM.
- Shem Green responds at 11:21 AM.
- Thomas Asher K9 arrives around 11:30 AM according to Stephen Lozano.

- Vicente Paco arrives around 11:35-11:37 AM.

27A. Plaintiff alleges that the proximity of the stop to the Sonoita Border Patrol Station enabled this rapid, coordinated multi-agent deployment, and that the conflicting timestamps and missing logs expose manufactured or unverified justification for the prolonged detention.

28. Plaintiff alleges that agents had already seized and immobilized the vehicle through a show of authority and deployment of spike strips before any K-9 alert occurred. Plaintiff further alleges that Agent Andrew Coggins wiped dirt from the vehicle window and viewed the interior before the arrival of the K-9 unit, and later repeated similar observations after the K-9 deployment. Plaintiff contends that the visual observations resulting from the window-wipe searches were obtained only after Plaintiff had already been detained and therefore could not have contributed to any individualized reasonable suspicion existing at the inception of the stop.

29. "Pre-K-9 Window wipe": That 10-minute detention gap narrative that the K-9 alert justified the prolonged detention, because the detention was already fully committed to and prolonged long before the dog ever sniffed the vehicle.

**C. The Sixty-Second Timeline and Coggins's Reported Observations**

29. According to Agent Coggins's report, at 11:10 a.m. he "observed" Plaintiff's vehicle pass his location; at 11:11 a.m. he "managed to get behind" the vehicle and read its license plate; and at approximately 11:21 a.m. he radioed that he was performing a multi-agent vehicle stop.

30. Plaintiff notes that this account allows Coggins only about sixty seconds to overtake two vehicles, accelerate, merge, and close distance while using the radio, all within a 30-mph school and park corridor. Coggins's report nonetheless describes observing "swerving,"

"drifting," "speed fluctuation," "stiffening up," and a "heavily laden" vehicle before he was positioned behind Plaintiff's vehicle.

31. Plaintiff contends that reliable observation of the various indicators later reported by Agent Andrew Coggins, including alleged swerving, drifting, speed fluctuation, stiffening, and a heavily laden vehicle, is not consistent with a driver simultaneously accelerating, overtaking vehicles, merging into traffic, closing distance, operating a radio, and navigating a school, park, and senior-citizen corridor. Plaintiff therefore alleges that the reported observations were not operationally feasible within the timeframe described and that individualized reasonable suspicion had not yet developed.

32. Instead, Plaintiff contends that the stop was based upon non-individualized suspicion, including appearance-based assumptions, a perceived driver-registration mismatch, generalized corridor reputation, and preexisting hunches rather than specific, articulable facts tied to Plaintiff personally. Plaintiff further alleges that the maneuvers required to position behind Plaintiff's vehicle unnecessarily endangered pedestrians, school traffic, elderly drivers, and other members of the Patagonia community before individualized reasonable suspicion existed.

33. Coggins followed Plaintiff for approximately 11.6 miles and waited 11 minutes before initiating the stop, despite claiming to have observed hazardous driving at the outset.

34. Plaintiff contends that Agent Andrew Coggins did not make the majority of the observations he later reported during the initial sixty-second period after Plaintiff's vehicle first passed his location. Plaintiff instead contends that Agent Andrew Coggins likely did not position himself behind Plaintiff's vehicle until after Plaintiff had already reached portions of the roadway where the posted speed limit had increased to 45 mph and later 55 mph. Plaintiff

therefore disputes the suggestion that Agent Andrew Coggins was able, within approximately sixty seconds, to simultaneously overtake multiple vehicles, close distance, read the vehicle registration, operate the radio, position himself behind Plaintiff's vehicle, and reliably observe the various indicators later cited in reports, including alleged swerving, drifting, speed fluctuation, stiffening, and a heavily laden vehicle. Plaintiff contends that the reported sequence raises substantial questions regarding the timing, reliability, and plausibility of the observations used to justify the non-individualized-suspicion stop.

35. According to Coggins's federal complaint report, Plaintiff's speed "Fluctuated" between approximately 51 and 58 miles per hour while the posted speed sign zone was 55 Mph. speed limit increased from 30 mph to 40 mph, then 45 mph, and ultimately 55 mph over approximately 2.15 miles. Plaintiff alleges that his speed was lawful and reflected ordinary speed stabilization.

36. As to the "heavily laden" characterization, Plaintiff's post-incident Optimus investigation report , performed by my public defenders team measurements showed a suspension-compression difference of approximately one-half inch [Plaintiff to confirm: a prior draft read "1 ½"] on the front passenger side and approximately one and three-eighths ("1 3/8") inches on the rear passenger side. Given an estimated approximate observation distance of 40 to 45 feet, the brief duration of the encounter, and a viewing angle limited primarily to the passenger side, Plaintiff questions whether the "heavily laden" characterization was supported by objectively observable facts or instead reflected a subjective, appearance-based, driver surname mismatch, Agent Coggins did highlight and flag registered owners last name as (RAS).

37. Plaintiff is a former commercial driver's license (CDL) holder with Roadmaster training, over-the-road experience across 48 states, experience driving Interstates 80, 90, and 95,

winter-driving experience in the Colorado Rockies, the windy Wyoming foot hill plains, the icy Montana mountains, and the Northwestern Region, and a clean driving record. Plaintiff contends that this background makes the alleged "swerving" in a Sedan on a dry Arizona road markedly less plausible.

38. Based on the timing, geography, and sequence of events described above, Plaintiff alleges the following chronology is the most plausible reconstruction of the encounter: Agent Coggins first observed Plaintiff's vehicle at approximately 11:10 a.m. At that point, Agent Coggins was not positioned behind Plaintiff's vehicle and did not have a vantage point permitting meaningful observation of Plaintiff's lane position or speed. Agent Coggins thereafter accelerated, overtook multiple vehicles, and maneuvered into a position behind Plaintiff's vehicle. According to Agent Coggins's account, he was positioned behind Plaintiff's vehicle by approximately 11:11 a.m. and subsequently observed speeds ranging between approximately 51 and 58 miles per hour Zone sign. Plaintiff further alleges that these observations occurred over approximately 2.15 miles of Coggins observation post. During which the posted speed limit progressively increased from 30 mph zone (In town) to 40 mph zone (Leaving town) , then 45 mph zone (outskirts of town), and ultimately 55 mph Zone where Agent Coggins report mentioned initial vehicle speed observations. Plaintiff contends that the timing, distance travel, changing speed limits, roadway conditions, and reported speeds are inconsistent with Defendants' characterization of Plaintiff's driving behavior and support an inference that factors other than the initially observed driving conduct contributed to the decision to continue the detention and investigation he had already committed to.

**D. K-9 Coordinated Deployment, Communication Omissions, and Pre-Stop Planning**

39. Plaintiff contends that Andrew Coggins alerted K-9 Handler Thomas Asher to "get ready" for a stop before articulating any immigration-related reasonable suspicion or identifying any specific and articulable facts suggesting an immigration violation. Plaintiff further alleges that Andrew Coggins thereafter followed Plaintiff's vehicle, conducted registration inquiries, communicated with other CBP personnel, and coordinated a multi-agent response before identifying any individualized facts supporting an immigration inspection. Plaintiff therefore contends that the stop was initiated and planned before any immigration-related basis had been established.

40. In his own report, Coggins states that he coordinated with BPA Shem Green and performed a “multiple-agent vehicle stop,” identifying himself and Green as the primary agents involved. Plaintiff alleges that the report does not acknowledge alerting Thomas Asher, instructing Asher to prepare for a stop, staging a canine response, or otherwise pre-planning or pre-signaling the stop before reasonable suspicion existed.

41. Plaintiff identifies an apparent inconsistency between Coggins’s account (“I coordinated with BPA Green”) and Asher’s account (that Coggins told him to “get ready” for a stop). Plaintiff submits that both statements cannot be fully accurate unless Coggins omitted Asher’s K9 Handlers involvement and the pre-planning that it would reflect.

42. Plaintiff alleges that USBP canine deployments ordinarily require the handler to document the time of arrival, deployment, alert, search, and conclusion, and that such timestamps are used to establish whether a canine was deployed lawfully, whether the stop was already underway, whether reasonable suspicion existed before the canine’s use, and whether the canine was used to retroactively justify a stop. Plaintiff states that K-9 handler Thomas Asher’s report provides no arrival timestamp, no deployment timestamp, and no alert timestamp, and

alleges that this absence is consistent with a canine response staged in advance of a stop that had been pre-planned, committed to rather than justified by developing facts.

43. Plaintiff alleges that multiple agents coordinated before, during, and after the stop, played assigned operational roles, deployed resources in advance, and participated in conduct that Plaintiff contends lacked lawful justification.

**E. Prolonged Detention, the Multiple Window-Wipe Searches Before and After K-9 Deployment, and Plaintiff's Assertion of Rights**

44. The stop lasted approximately 27 minutes. During that time, agents repeatedly gathered, congregated near the rear of Plaintiff's vehicle, appeared to coordinate among themselves, took turns interacting with Plaintiff, privately conferred outside Plaintiff's presence, communicated among themselves, and carried out different, role-based tasks. Plaintiff was not provided a clear explanation for the continued detention, only post hoc explanations. Plaintiff alleges that no agent articulated a crime, violation, or independent basis for continued detention and that no new facts developed during that period.

45. Only later did Agent Coggins wipe dirt from the vehicle and look inside, leading to observations later cited in reports. Plaintiff questions whether those observations existed before the prolonged detention or were developed during the detention itself.

46. During the stop, Agent Coggins physically touched Plaintiff's vehicle, wiped dirt from a window, and looked inside. Plaintiff did not consent to the conduct, communicated that objection to Coggins, and recalls telling Coggins that the conduct was unlawful and that he did not consent to it. Plaintiff does not know whether the exchange was captured by body-worn camera, radio communications, surveillance systems, or witness recordings. Plaintiff further recalls Coggins responding with words substantially similar to, "I can do what I want." Plaintiff responded, "No, you cannot, Sir. That is not how the Constitution works." Plaintiff recalls

Coggins responding, "OK." Plaintiff alleges that this exchange occurred during the encounter and contributed to Plaintiff's belief that his objections were being disregarded.

47. Agent Coggins further used language and conduct that Plaintiff understood percieved as conveying that Plaintiff was not going to challenge Agent Coggins's authority. Plaintiff alleges that the statement, together with the surrounding circumstances and Defendants' actions, contributed to a coercive atmosphere and discouraged Plaintiff from exercising or asserting his rights.

48. The blanket that Coggins later referenced was visible only after he wiped dirt from the vehicle and looked inside before the K-9 arrived. Plaintiff contends that it was therefore not part of any reasonable suspicion that predated the stop. Plaintiff further alleges that, upon viewing the vehicle's interior, Agent Coggins should have observed a cane located in the rear seating area near Plaintiff's personal belongings. The cane constituted an objectively observable indicator of a possible mobility impairment, disability-related condition, or medical limitation, providing constructive notice that Plaintiff may have had a disability-related condition.

49. Plaintiff submits that, combined with the 11.6-mile follow, the pre-planning with BPA Green, and the "get ready" cue given to K-9 handler Thomas Asher, this sequence indicates that Coggins was searching for a justification rather than acting on a pre-existing one.

49A. Multiple agents were congregated behind the vehicle, taking turns looking through the rear window and conferring among themselves. At the same time, according to Thomas Asher's report, the K-9 completed an exterior sniff and ultimately sat in the same general area where the agents had gathered. Plaintiff notes that Defendants simultaneously claim visibility limitations existed due to dirt, dust, and darkness, requiring Agent Andrew Coggins to physically wipe a vehicle window before observing the interior. Plaintiff therefore questions what

observations were actually available prior to the window wipe, what information agents were relying upon while gathered at the rear of the vehicle, and how the timing of those observations related to the canine deployment and alleged alert. Plaintiff requests discovery concerning the precise sequence of the agents' observations, the canine sniff, any alert behavior, and the timing of those events.

49B.Shortly thereafter, Thomas Asher returned to Plaintiff's vehicle and informed Plaintiff that the canine had alerted to "drugs or people." Plaintiff asked, "Which is it?" Plaintiff recalls Thomas Asher responding, "We're waiting on the supervisor." Plaintiff understood from that exchange that the canine sniff had already been completed before the supervisor arrived at the scene. Plaintiff therefore contends that the sequence of the canine deployment, the alleged alert, and the supervisor's arrival are material facts requiring discovery and verification through body-worn-camera footage, dispatch records, radio communications, and K-9 deployment records.

50. Plaintiff asked Martin Benevich the reason for the stop. Plaintiff recalls that, rather than providing an explanation, Martin Benevich gestured or waved Plaintiff off and did not provide a substantive response. As a result, Plaintiff remained uncertain regarding the legal basis for the stop and what authority or agency Martin Benevich was operating under; he was dressed in civilian attire with no Axon body camera. Plaintiff therefore remained unable to determine whether the encounter was conducted under official law-enforcement authority or whether any recording of the encounter existed.

51. Plaintiff states that, from the earliest moments of USBP custody, agents responded negatively to his attempts to assert his rights. When Plaintiff told Agent Martin Benevich, “You don’t know who you stopped,” Benevich replied, “Is that a threat?” Plaintiff

responded, "No, I'm saying I know my rights and I will enforce them," and Benevich walked away.

52. Plaintiff alleges that, each time he asserted his rights, the situation escalated.

**F. The Vehicle-Window Breach, Plaintiff's Injuries, and Supervisor Paco's Documentation**

53. At the time force was used, Plaintiff's hands were visibly placed on the steering wheel, as mentioned in CBP reports by other witnessing agents. Plaintiff made no threatening movements, possessed no weapon, and did not attempt to flee, resist, or obstruct officers. Plaintiff was seated, stationary, and compliant, asserting his rights.

54. Supervisory Border Patrol Agent Vicente Paco appeared to be preparing to breach the driver-side window using a soft-force technique, tapping on the driver's-side window and warning Plaintiff to brace for impact. Plaintiff interpreted that warning as recognition that a window breach could create a risk of injury to Plaintiff.

55. During the encounter, Supervisor Paco asked Plaintiff questions and, according to Plaintiff's observations, appeared to be attempting to communicate with Plaintiff and avoid an immediate escalation of force. As Plaintiff continued asserting his rights and questioning the basis for the stop and detention, Agent Benevich intervened.

56. Before Supervisor Paco completed the maneuver, Agent Martin Benevich abruptly took the window-breaching tool from Paco and struck the driver's-side window with significant force, causing it to shatter violently. Plaintiff contends that this escalated the encounter from a controlled effort to gain access to the vehicle into a forceful breach that showered Plaintiff violently with glass fragments.

57. Plaintiff alleges that agents breached the driver-side window instead of using any other window of the vehicle, and that less intrusive alternatives existed, including use of other windows or continued verbal de-escalation communications.

58. Plaintiff is informed and believes that Supervisor Paco was involved in supervisory decision-making, was present during key stages of the detention, and authorized the vehicle-window breach.

59. The violent shattering of the driver-side window dispersed glass fragments onto and around Plaintiff's person. Glass entered Plaintiff's footwear, and soon after discovered a glass fragment embedded in the bottom of his foot. Plaintiff also experienced tunnel vision, Bright lights, ringing of the ears and related symptoms following the impact of glass bursting violently.

60. Plaintiff further alleges that, following the window breach, Supervisory Border Patrol Agent Vicente Paco assisted Plaintiff during the extraction process and permitted Plaintiff to use him for physical support while exiting the vehicle. Plaintiff contends that this assistance helped reduce the risk of embedding additional glass fragments into Plaintiff's footwear and feet. Plaintiff sustained injuries resulting from the shattered glass dispersed during the violent breach.

63. Plaintiff also identifies apparent timeline discrepancies relating to Supervisor Paco's reported departure from the Sonoita Station, his arrival at the scene, and his subsequent participation in the incident. Based on Plaintiff's review of the available reports, the reported sequence of events appears difficult to reconcile with the timelines provided by other agents and with the expected travel time between the station and the stop location.

64. Because Supervisor Paco was involved in supervisory decision-making, was allegedly present during key stages of the detention, and is believed to have authorized the

vehicle-window breach, Plaintiff alleges that the accuracy and completeness of his report are material to any review of the incident.

**G. Medical Complaints and CBP Processing at the Sonoita Station**

65. Following the stop, Plaintiff was transferred into USBP custody at the Sonoita Station. Supervisory Border Patrol Agent Vicente Paco participated in the transfer and in the associated inventory-search process. At the station, Paco (or an agent Plaintiff believes to have been Paco) asked whether Plaintiff was a lawyer. Plaintiff recalls this because he had repeatedly asserted his rights and questioned whether he was being detained, and he interpreted the question as an acknowledgment that he understood his rights and was attempting to assert them. Plaintiff does not know whether the statement was captured on body camera, radio, or witness recordings. As Supervisor Paco performed inventory and was removing items from my bag, they kept my cell phone recoding device of the encounter, the elder man in scrubs made a remark that the item Paco held it up for every one to see, "He said its paraphernalia" when he was standing at a distance, I remember answering saying they were to pick at my ear wax, adding to my paranoia psychosis, anxiety , tunnel vision, I perceived the negativity towards me as non-friendly welcoming.

66. Plaintiff informed USBP personnel and the older medical staff member in scrubs that Plaintiff required psychiatric medication and had been without medication for approximately three days. After hearing this information, the medical staff member made a noticeable facial expression and eye movement in the presence of Supervisor Vicente Paco and other agents. Plaintiff interpreted the reaction as reluctance to initiate a medical referral or otherwise escalate Plaintiff's request for psychiatric treatment and medical attention. The medical staff member thereafter leaned toward a USBP agent, possibly Supervisor Vicente Paco, and spoke privately.

Plaintiff could not hear the contents of the conversation. However, based upon the timing of the exchange and surrounding circumstances, Plaintiff later became concerned that the discussion may have related to Plaintiff's psychiatric condition, medication needs, injuries, or request for medical attention. During this same period, Plaintiff was attempting to understand the situation while experiencing confusion, tunnel vision, ringing in the ears, anxiety, psychiatric distress, and increasing eye irritation. Plaintiff recalls processing both the interaction with the medical staff member and the uncertainty regarding whether his medical needs would be addressed, If I can recall in good faith when sitting, its likely someone was attending to my foot injury exposed to glass fragments at the time.

68. Plaintiff recalls the arrival Agent Martin Benevich responding to Plaintiff's confusion regarding the accusations against him with words to the effect that Plaintiff was "going to see" or "going to find out" the equivalent of threatening language. Plaintiff perceived the statement as threatening and remembers Supervisor Vicente Paco and others were present during the exchange. During this period, Plaintiff was sitting and perceived myself vulnerable against Agent Martin Benevich as the dominant presence in the room and believed that Agent Martin Benevich exercised substantial influence over the direction of the encounter. Plaintiff recalls feeling more comfortable communicating with the two CBP/DHS personnel in light-blue shirts and Supervisor Vicente Paco than with Agent Martin Benevich and the elder Nurse gentlemen. Plaintiff further alleges that Agent Martin Benevich's continued involvement in questioning, witness processing, and investigative activities regardless of being the author of the excessive force, contributed to Plaintiff's anxiety, tunnel vision, psychiatric distress, the need to throw up and concern regarding further escalation. Plaintiff alleges that other agents and supervisory personnel present did not intervene to stop the questioning, de-escalate the

interaction, or ensure that Plaintiff's reported medical and mental-health needs were addressed before further processing continued, and that the continuation of questioning and processing delayed appropriate medical assessment and treatment.

69. During this period, Plaintiff was experiencing increasing eye irritation, confusion, ringing in the ears, tunnel vision, anxiety, psychiatric distress, and concerns regarding the need of psychiatric medication. Plaintiff initially attributed portions of the irritation to sweat, debris, and the confusion following the incident. As time passed, the sensation developed into a more pronounced stinging discomfort. Plaintiff recalls the sensation feeling similar to tiny particles moving within the eye and becoming progressively more difficult to ignore. Plaintiff further alleges that Agent Martin Benevich's threatening demeanor, continued involvement in questioning, and dominant presence in the room, combined with Plaintiff's physical and psychiatric symptoms, caused Plaintiff to become increasingly reluctant to speak up regarding his medical concerns. Plaintiff perceived that greater attention was being directed toward investigative processing and questioning than toward addressing his reported medical needs. Plaintiff recalls feeling particularly vulnerable while seated and surrounded by multiple personnel as Agent Martin Benevich remained standing and continued participating in the encounter.

70. Plaintiff recalls that, while being escorted toward the holding cell, Agent Martin Benevich made a final attempt to draw Plaintiff into the interview room. Plaintiff recalls Agent Martin Benevich raising his voice across the room while standing in the doorway of the interview room. At that point, Plaintiff did not wish to be alone with Agent Martin Benevich and was fearful of further escalation. Plaintiff was experiencing increasing eye irritation, stinging discomfort, tunnel vision, anxiety, confusion, and psychiatric distress. Plaintiff perceived the

continued focus on interviews, questioning, and investigative processing as taking priority over his requests for medical attention and psychiatric needs. Plaintiff perceived Agent Martin Benevich's intimidating demeanor, coercive questioning tactics, and dominant physical presence as discouraging Plaintiff from being more vocal about his injuries, psychiatric distress, and need for emergency medical attention. and to silence Plaintiff from voicing his acute physical and psychiatric needs. Plaintiff contends that these coercive measures directly contributed to the delay in obtaining necessary medical evaluation at Canyon Vista Medical Center and constituted unlawful interference with his right to medical attention while in federal custody.

71. It was not until Plaintiff was later placed in a holding cell that the eye irritation developed into a more distinct stinging sensation, causing Plaintiff to become increasingly concerned that an eye injury had occurred. As Plaintiff became physically separated from the questioning, processing, and custodial activity surrounding the detention, the initial adrenaline, stress response, and cold sweats began to subside. Plaintiff initially attributed portions of the irritation to sweat, debris, and the confusion surrounding the incident. As the physiological stress response diminished momentarily , Plaintiff became more aware of the symptoms affecting the left eye. Plaintiff recalls that the irritation developed into a sharper stinging sensation, accompanied by tunnel vision, confusion, anxiety, psychiatric distress, and concern regarding the condition of the eye. Plaintiff recalls the sensation feeling similar to tiny particles moving within the eye and becoming progressively more difficult to ignore. Plaintiff thereafter became increasingly concerned that he had sustained an eye injury requiring medical attention. Subsequently, the emergency-department physician documented complaints of left-eye pain following exposure to shattered glass and diagnosed acute left-eye pain, ED Patient

Summary Corneal Foreign body removal instructions precuaitons & treatment was recommended.

72. Plaintiff remembers being transported in a USBP vehicle and experiencing increasing irritation affecting the left eye before arriving at Canyon Vista Medical Center. Plaintiff further recalls that the irritation became significantly sharper during transport. Plaintiff also recalls that the transporting agents discussed K-9 certifications, career advancements, and institutional matters during the trip. Plaintiff does not recall either transporting agent asking about Plaintiff's medical condition, eye symptoms, psychiatric symptoms, or whether Plaintiff was experiencing pain following the window breach. Plaintiff contends that the transport occurred while Plaintiff was experiencing increasing eye irritation, confusion, ringing in the ears, tunnel vision, anxiety, and psychiatric distress. The physician record later documented complaints of left-eye pain after exposure to shattered glass and diagnosed acute left-eye pain.

73. Plaintiff alleges that, despite being directly involved in the use-of-force incident that caused Plaintiff's injuries, Agent Martin Benevich continued participating in witness identification, investigative processing, questioning, and the collection of statements concerning the same incident. Plaintiff further alleges that certain witnesses possessed limited or no English proficiency and that Agent Martin Benevich actively guided portions of the questioning process, including suggesting or confirming descriptive terms such as "asustado" ("frightened" or "scared"). Plaintiff contends that it was inappropriate for the agent directly involved in the incident to continue participating in investigative activities concerning that same event.

73. Plaintiff further alleges that witness statements were later used to support allegations that passengers were confined in a container-like compartment analogous to a trunk,

thereby increasing the perceived legal risk associated with the offense. Plaintiff disputes that characterization and alleges that the Chevrolet Trax involved in the incident did not contain a separate trunk compartment in which occupants were isolated from the passenger area. Plaintiff alleges that occupants could readily access and move among the passenger seating areas and that the characterization of the vehicle as containing a trunk-like confinement area was inaccurate or misleading.

**H. Emergency Treatment at Canyon Vista Medical Center**

77. Following the window breach, Plaintiff was transported to Canyon Vista Medical Center for emergency evaluation. Plaintiff reported being showered with glass and experiencing eye irritation, developing eye discomfort, and related mental-health symptoms. Plaintiff further reported that, while initially attributing portions of the irritation to sweat, debris, and the confusion surrounding the incident, the irritation later developed into a more pronounced stinging sensation. Medical personnel provided, ophthalmic treatment, and Plaintiff was treated with multiple eye washes fluorescein examinations, tetracaine application, and erythromycin ophthalmic ointment. Plaintiff ultimately received ophthalmic treatment, psychiatric medication, and emergency-department discharge instructions concerning eye care, follow-up evaluation, and worsening symptoms

78. Plaintiff received oral discharge instructions, medication instructions, follow-up recommendations, and return precautions. Plaintiff was verbally informed by emergency-department personnel regarding treatment recommendations, follow-up precautions, and the circumstances under which further evaluation should be sought if symptoms persisted or

worsened, including further evaluation if eye pain persisted or failed to improve. The instructions contemplated continued monitoring, follow-up care, and return for worsening symptoms.

79. Plaintiff does not know whether written discharge instructions say they were printed, whether USBP received them, whether CoreCivic received them, or who handled them. Plaintiff alleges that these discharge instructions were communicated in the presence of, or were otherwise available to, USBP personnel responsible for Plaintiff's custody and transport following treatment. Plaintiff further alleges that USBP personnel were aware that Plaintiff had sustained an eye injury diagnosis from glass exposure requiring ongoing monitoring, prescribed medication, and follow-up care.

80. Following discharge from Canyon Vista Medical Center, Plaintiff was returned to government custody. Plaintiff alleges that multiple agents, supervisors, medical personnel, and detention personnel were aware that Plaintiff had been transported for emergency medical treatment following the window breach.

**I. Canyon Vista Documentation Discrepancies**

81. Plaintiff notes that the Canyon Vista records contain multiple discharge-related documents associated with the September 18, 2024, encounter. The physician-authenticated medical screening examination performed by James Rowley, FNP, and verified by Edward Jackman, MD, documents that Plaintiff reported left-eye pain after exposure to shattered glass, was prescribed erythromycin ophthalmic ointment and psychiatric medications, and was provided educational materials, follow-up instructions, counseling, and return precautions prior to discharge. The same physician record reflects a discharge order entered at approximately 4:49 PM MST and was later authenticated at approximately 5:41 PM.

82. Plaintiff further notes that the nursing-triage documentation contains multiple inconsistencies. A triage pain assessment performed by Joshay Lewis recorded a numeric pain rating of "0 = No pain," while the subsequently authenticated physician record expressly states: "He also complains of pain in the left eye reporting border patrol smashed the window to his vehicle and he was showered in glass." The same encounter ultimately resulted in a diagnosis of acute left-eye pain, ophthalmic treatment, corneal-foreign-body educational materials, follow-up recommendations, and return precautions. Plaintiff therefore disputes the accuracy of the triage pain assessment and contends that it is inconsistent with the remainder of the medical records.

83. Plaintiff further notes that separate discharge-related summaries exist bearing a result date of approximately 6:55 PM [Plaintiff to specify which is the "ED Patient Summary" and which is the "ED Clinical Summary"] and identifying Megan Autz as the individual who performed, verified, and modified both of those documents, un like the physician-authenticated medical screening examination performed by James Rowley, FNP, and verified by Edward Jackman, MD, documented educational materials, prescriptions, counseling, follow-up recommendations, return precautions, and discharge instructions.

84. One discharge-related summary contains substantially more detailed corneal-foreign-body instructions, psychiatric educational materials [Plaintiff to confirm: mood-disorder educational materials], symptom-monitoring guidance, follow-up recommendations, return precautions, and recommendations for additional evaluation if eye pain persisted or worsened. A separate discharge-related summary appears substantially abbreviated by comparison. Plaintiff does not presently know whether these documents served different purposes, whether either document replaced or supplemented the physician-authenticated treatment plan, or which version accompanied Plaintiff following discharge while in custody. Plaintiff therefore contends that

substantial factual questions exist regarding what discharge information, prescriptions, follow-up recommendations, return precautions, and continuity-of-care instructions were transmitted during custodial transfer.

85. Plaintiff further notes that the record set includes an ED Patient Summary accompanied by a Confirmation of Receipt of Instructions page. The document states that Plaintiff was provided with educational materials, follow-up instructions, and prescriptions; however, the acknowledgment page appears entirely unexecuted, containing no patient signature, no nurse signature, no hospital witness signature, and no marked administrative exception indicating refusal or inability to sign.

86. Plaintiff remained continuously in federal custody following discharge. Plaintiff therefore disputes the accuracy of the record's representation that discharge materials were personally provided and acknowledged by Plaintiff (see ¶ 90 regarding the statement of the CBP Office of Professional Responsibility investigator).

**J. Custodial Transfer, Missing Records, and the Chain of Custody of Medical Information**

87. After medical treatment, Plaintiff remained in USBP custody. Plaintiff was dependent on USBP personnel for access to medical care, psychiatric care, transportation, medications, and continuity of care. Plaintiff alleges that USBP personnel possessed or had access to Plaintiff's medical information, including his eye treatment, continuing symptoms, and psychiatric treatment and communicated mental-health history.

88. Plaintiff was thereafter transferred from USBP custody to CoreCivic custody. Plaintiff does not know whether USBP transmitted the emergency-room discharge instructions, ophthalmic prescription, psychiatric-care information, medication instructions, follow-up recommendations, or return precautions during the transfer.

89. Plaintiff further alleges that the coordinated conduct did not end with the stop itself but continued through the subsequent custodial process, including the handling of Plaintiff's medical treatment, emergency-room discharge instructions, prescribed ophthalmic medication, psychiatric medication needs, follow-up recommendations, and continuity-of-care information.

90. Plaintiff alleges that he later received information, during a recorded conversation concerning Plaintiff's complaints and resulting injuries, from an investigator with CBP's Office of Professional Responsibility ("OPR") indicating, in substance, that Plaintiff would not be provided, or personally receive, the emergency-department discharge instructions because of Plaintiff's custodial status. Plaintiff contends that this statement is relevant to whether the discharge instructions, medication instructions, follow-up recommendations, and return precautions were withheld, transmitted, preserved, or made available to Plaintiff following emergency medical treatment.

91. Plaintiff was later informed that CoreCivic representatives asserted that no emergency-department discharge instructions existed, were received, or could be located, and that personnel responsible for Plaintiff's custody, care, or treatment maintained no record of the instructions or of their receipt, implementation, preservation, or transmission.

92. Plaintiff further learned that Defendants disclosed that CAFCC reported that "NO" record of Plaintiff's eye-treatment records or mental-health records could be located as of October 14, 2024, according to litigation disclosure statements.

93. Plaintiff further notes that CAFCC's disclosures nevertheless indicate that custodial and medical personnel possessed at least partial information concerning Plaintiff's treatment regimen, including the prescribed erythromycin ophthalmic ointment. Plaintiff

contends that possession of a portion of the treatment regimen created constructive notice that Plaintiff had recently received emergency medical treatment for an eye-related condition requiring follow-up care, medication administration, and continued monitoring.

94. Based on the absence of those records and instructions, the failure to implement prescribed treatment, and the interruption of continuity of care, Plaintiff believes that records were not properly transmitted, received, maintained, preserved, or acted upon during the transfer process, and contends that the absence of the records is relevant to whether medical information, prescriptions, discharge instructions, follow-up recommendations, and continuity-of-care information were handled properly following his emergency treatment.

95. Plaintiff alleges that no Defendant has identified a complete chain of custody for Plaintiff's discharge instructions, prescribed treatment, or continuity-of-care information. Plaintiff does not presently know who ultimately received responsibility for the discharge instructions or what medical information was transmitted during custodial transfer. Plaintiff is presently unaware of the identities of all persons who received, reviewed, transmitted, maintained, implemented, or failed to implement his discharge instructions, prescriptions, and continuity-of-care information, and of the extent of each Defendant's knowledge concerning them; that information is known principally to Defendants, and Plaintiff seeks discovery regarding it.

96. Plaintiff alleges that the records presently reveal potential issues involving (1) the transmission of discharge information during federal USBP custody, (2) the Canyon Vista hospital discharge process and generation of discharge documentation, and (3) the continuity of care following transfer into CAFCC custodial detention. Because each stage appears to involve unresolved questions concerning medical information, follow-up instructions, return precautions,

and continuity-of-care documentation, Plaintiff seeks discovery of the complete chain of custody of medical information from emergency treatment through subsequent detention.

97. Plaintiff therefore contends that substantial factual questions exist regarding the accuracy, generation, receipt, transmission, preservation, verification, modification and implementation of discharge instructions, prescriptions, follow-up recommendations, return precautions, and continuity-of-care information following emergency treatment. Plaintiff further contends that these circumstances are directly relevant to the subsequent report by CAFCC that eye-treatment and mental-health records could not be located, thereby linking the emergency-room treatment, custodial transfer, continuity-of-care issues, and resulting injuries into one continuous factual sequence, and seeks discovery regarding these matters and allegations.

97A. Plaintiff recalls observing a prolonged conversation between a custodial USBP agent and an unidentified female hospital staff member shortly after arrival at Canyon Vista Medical Center. Plaintiff did not hear the contents of the conversation and does not presently know the identity of the individual involved. Plaintiff respectfully requests discovery sufficient to determine whether the employee was Megan Autz, what information was discussed, and whether discharge instructions, prescriptions, follow-up recommendations, return precautions, psychiatric-treatment information, or continuity-of-care materials were exchanged during the custodial handoff process.

**K. CoreCivic Continuity-of-Care Failures**

98. After the transfer, Plaintiff did not receive the prescribed ophthalmic medication within the treatment period specified by the emergency-room providers and did not receive the medical attention he believed necessary, as recommended by the continuity-of-care instructions.

99. Plaintiff repeatedly requested medical attention for his eye injury. While in CoreCivic custody, Plaintiff submitted formal and informal grievances and medical requests reporting continued eye pain, consistent with the emergency-room instructions advising further evaluation if pain persisted, and requesting medical evaluation, follow-up treatment, ophthalmic care, and psychiatric assistance.

100. Plaintiff alleges that these grievances and requests were not addressed or were not adequately addressed. Rather than receiving the prescribed ophthalmic medication within the specified period or a referral for further evaluation despite worsening symptoms, Plaintiff was told by a nurse to "give it time to heal."

101. During the same period, Plaintiff experienced worsening symptoms related to his documented Serious Mental Illness. Plaintiff repeatedly requested an increase in his buspirone psychiatric medication and mental-health assistance, and those requests were not accommodated.

102. As his eye pain continued without the treatment he believed he needed, Plaintiff's psychiatric condition deteriorated, including increasingly distressing thoughts and auditory symptoms; fear of going blind or of permanent visual impairment; recurring anxiety, confusion, and emotional distress; and tunnel vision and black-out episodes, during the period in which he was unable to obtain the care he believed necessary.

103. Plaintiff was unable to stop thinking about Agent Benevic statements that Plaintiff was "going to find out," which Plaintiff perceived as threatening language and which contributed to recurring intrusive thoughts, anxiety, psychological distress, and worsening psychiatric symptoms.

104. Because he was housed in a custodial setting, Plaintiff felt pressure to appear strong and self-reliant and to avoid displaying vulnerability despite his worsening physical and

mental condition. Plaintiff submitted numerous grievances, medical requests, and requests for assistance to correctional staff and case-management personnel concerning his medical condition, psychiatric history, personal safety concerns, and the ongoing effects of the incident. Plaintiff alleges that these repeated requests placed custodial personnel on notice of his worsening condition and need for attention.

105. Plaintiff further alleges that he was subjected to accusations by other detainees that he was acting as an informant. Plaintiff alleges that the resulting harassment aggravated his psychiatric symptoms, anxiety, and emotional distress. Plaintiff alleges that delays in addressing or delivering matters relevant to his custody status contributed to confusion among detainees regarding Plaintiff's role in the underlying investigation and increased the risk of harassment, intimidation, and deterioration of Plaintiff's mental health.

106. After his return to custody, Plaintiff continued to experience eye pain, visual disturbances, tunnel vision, light sensitivity, episodes of blacking out, and related distress, and continued reporting eye pain consistent with the emergency-department instructions advising further evaluation if symptoms persisted or worsened. Plaintiff contends these symptoms warranted further evaluation and follow-up care.

107. Plaintiff's visual symptoms persisted despite repeated requests for medical evaluation and follow-up care. Plaintiff did not receive timely ophthalmic follow-up evaluation, and he experienced uncertainty regarding the nature and extent of his eye injury because prescribed treatment, follow-up evaluation, and continuity-of-care measures were not provided.

108. Plaintiff alleges that the failure to provide timely ophthalmic treatment and follow-up care prolonged his symptoms, increased his distress, and delayed appropriate evaluation of his visual complaints.

109. Plaintiff alleges that both CBP personnel and CoreCivic personnel failed to ensure continuity of his medical and mental-health care despite knowledge of his injury, ongoing symptoms, emergency medical treatment, and repeated requests for assistance, resulting in a multi-agency breakdown in continuity of care that formed a continuous pattern of harm. Plaintiff alleges that Defendants failed to ensure the receipt, transmission, preservation, implementation, and follow-up of the medical instructions issued by Canyon Vista Medical Center, and that, as a result, Plaintiff suffered continued eye pain, visual disturbances, worsening psychiatric symptoms, emotional distress, aggravation of preexisting mental-health conditions, and delays in appropriate treatment.

110. Plaintiff contends that the failure of CBP to transfer medical documentation and the failure of CoreCivic to act on reported symptoms constitute a multi-agency continuity-of-care failure, and is informed and believes that Defendants failed to implement, follow, preserve, transmit, or act upon his emergency-department discharge instructions, medication instructions, follow-up recommendations, and return precautions.

**L. Damages and Continuing Harm**

111. Plaintiff has a history of psychiatric symptoms during periods of severe emotional distress. Plaintiff contends that the events in Sonoita, Arizona, including custody, the window breach, resulting injury, medical concerns, continuing eye-related symptoms, concern regarding possible vision loss, lack of prescribed treatment, and the failure of continuity of medical and mental-health care, exacerbated and aggravated those preexisting symptoms and contributed to recurring psychiatric symptoms, including black-out, tunnel-vision, and bright-light episodes that remain ongoing mental-health symptoms. Plaintiff states that the combination of persistent eye

pain, uncertainty about his vision, delayed treatment, and worsening psychiatric symptoms caused substantial psychological distress that continues to affect him.

112. The injuries and damages Plaintiff alleges are further itemized in Section VI below.

## V. CLAIMS FOR RELIEF

### COUNT I
### Fourth Amendment (Bivens)
### Unlawful Stop, Prolonged Detention, Unreasonable Search, Unreasonable Seizure, and Excessive Force

113. Plaintiff incorporates paragraphs 1 through 112 as though fully set forth herein.

**A. Unlawful Stop**

114. Defendants violated Plaintiff's Fourth Amendment rights by initiating a stop without specific, articulable facts suggesting criminal activity. Plaintiff alleges, as set out above, that:

(a) Agent Coggins formed a hunch based on limited visual contact in a 30-mph corridor (¶ 38);

(b) he overtook two vehicles, accelerated, merged, and closed distance within approximately sixty seconds, and the "swerving," "drifting," "speed fluctuation," and "heavily laden" observations he claimed were not operationally possible (¶ 30);

(c) Plaintiff's speed (51–58 mph) was lawful as the posted limit increased from 30 to 40 to 45 to 55 mph (¶ 35);

(d) the vehicle's registration to a woman and its origin in Casa Grande are not suspicious (¶ 19);

(e) Plaintiff's driving background makes the alleged "swerving" less plausible (¶ 37);

(f) the "heavily laden" claim is contradicted by post-incident measurements showing minimal suspension compression (¶ 36);

(g) Plaintiff was traveling on Highway 82 away from his residence, consistent with normal local travel (¶ 18); and

(h) no articulable facts existed at the moment the stop was initiated.

**B. Prolonged Detention**

115. Defendants unlawfully prolonged the detention beyond the time necessary to address any alleged basis for the stop. Plaintiff alleges that:

(a) the detention lasted approximately 27 minutes, during which agents repeatedly gathered behind Plaintiff's vehicle and coordinated among themselves for 10 minutes before K-9 Handler Thomas Asher arrived(¶ 44);

(b) no agent articulated a crime, violation, or independent basis for continued detention (¶ 44);

(c) Plaintiff disclosed U.S. citizenship early in the encounter, eliminating any immigration-related basis (¶ 24);

(d) the detention continued although no new facts developed; and

(e) the window-wipe search occurred only after the prolonged detention, which Plaintiff alleges indicates manufactured suspicion (¶¶ 45–49).

**C. Unreasonable Search**

116. Defendants conducted a search without consent, reasonable suspicion, or probable cause. Plaintiff alleges that Agent Coggins wiped dirt from Plaintiff's window and looked inside the vehicle; that Plaintiff expressly stated he did not consent; that Coggins responded, "I can do what I want"; that the blanket referenced in reports was visible only after the window was wiped;

and that the search occurred after the prolonged detention and was used to justify continued detention (¶¶ 46–48). Plaintiff further contends that Coggins's statement and conduct were inconsistent with CBP policy and constitutional requirements.

**D. Unreasonable Seizure by Show of Authority and Physical Force**

117. Defendants seized Plaintiff through a show of authority and physical force. Plaintiff alleges that multiple agents arrived in a coordinated, synchronized manner; assumed tactical positions around the vehicle; deployed spike strips in front of the vehicle; surrounded Plaintiff and told him he would be removed if he did not comply; and that Plaintiff was not free to leave (¶ 27). Plaintiff's hands were visible on the steering wheel when the window was breached (¶ 53), and Agent Benevich struck the window with significant force, shattering the driver's-side window, dispersing glass, and causing eye pain, visual disturbance, and injury requiring emergency medical evaluation (¶¶ 56, 59–61).

**E. Excessive Force**

118. Defendants used force that was unnecessary, disproportionate, and unreasonable. Plaintiff was compliant, with hands visible on the steering wheel (¶ 53); Supervisor Paco appeared prepared to use a soft-force technique (¶ 54); Agent Benevic abruptly escalated to major force by striking the window (¶ 56); less intrusive alternatives existed (¶ 57); and the force was used despite Plaintiff's visible compliance and lack of threat. The breach caused the window to shatter, dispersing glass and resulting in eye pain, visual disturbance, and injury requiring emergency medical evaluation (¶¶ 59–61).

**F. Continued Seizure After Medical Distress**

119. Plaintiff reported eye pain, confusion, and mental-health medication needs. Despite his visible injury, agents continued questioning and processing him, and he was compelled to complete a material-witness interview despite his medical distress (¶¶ 70–71).

**G. Summary of Fourth Amendment Violations**

120. Plaintiff alleges that the foregoing facts establish the following violations:

(a) unlawful stop (no reasonable suspicion);

(b) prolonged detention (*Rodriguez v. United States*, 575 U.S. 348 (2015));

(c) unreasonable search (non-consensual window wipe);

(d) unreasonable seizure (tactical containment and spike strips);

(e) excessive force (window breach);

(f) continued seizure despite medical distress; and

(g) detention after citizenship disclosure (no immigration basis).

**COUNT II**
**Fifth Amendment Equal Protection (Bivens)**
**Appearance-Based and Non-Individualized Suspicion**

121. Plaintiff incorporates paragraphs 1 through 112 as though fully set forth herein.

**A. Appearance-Based Initiation of the Stop**

122. Defendants initiated the stop based on appearance-based assumptions rather than specific, articulable facts. Agent Coggins expected a female registered owner; upon seeing Plaintiff, a Latino/Hispanic male with long hair worn in a bun, he concluded Plaintiff did not "match"; and the perceived mismatch was used as part of the justification for initiating an "immigration inspection" (¶ 19). Plaintiff alleges that the mismatch was not tied to any

articulable suspicion of wrongdoing and that Plaintiff's appearance was used as a factor in deciding to stop the vehicle.

**B. Reliance on Perceived Ethnicity**

123. Plaintiff is Latino/Hispanic. Plaintiff alleges that Defendants relied, at least in part, on his ethnicity; that his ethnicity was a factor in the decision to initiate the stop; that no specific facts tied his ethnicity to any suspected criminal activity; and that ethnicity was used as a generalized indicator rather than an individualized factor.

**C. Reliance on Perceived Immigration Status**

124. Plaintiff alleges that Defendants relied on perceived immigration status despite his immediate disclosure of U.S. citizenship (¶ 24). Despite that disclosure, agents continued to detain Plaintiff and escalated the encounter; no immigration-related questions were asked before or after the disclosure; and the justification for the stop shifted from "swerving" to "immigration inspection" without any immigration-related basis. Plaintiff alleges that this shift was based on perceived immigration status rather than articulable facts.

**D. Non-Individualized Suspicion**

125. Plaintiff alleges that Defendants relied on generalized assumptions rather than individualized suspicion, including that:

(a) the alleged "swerving," "drifting," and "heavily laden" observations were not operationally possible during the sixty-second maneuvering window (¶ 30);

(b) the vehicle's registration to a woman and in Casa Grande is not suspicious (¶ 19);

(c) Plaintiff's lawful speed (51–58 mph) was consistent with posted limits (¶ 35);

(d) Plaintiff's driving background makes the alleged "swerving" implausible (¶ 37);

(e) Plaintiff's presence on Highway 82 was consistent with normal travel from his residence (¶ 18); and

(f) no individualized facts tied Plaintiff to any suspected criminal activity.

**E. Discriminatory Escalation During the Encounter**

126. Agents escalated the encounter after Plaintiff asserted his rights (¶¶ 51–52). Plaintiff alleges that Agent Benevich and other agents responded negatively when he stated he knew his rights, that the window breach occurred despite his visible compliance (¶ 53), and that discriminatory assumptions contributed to the escalation.

**F. Equal Protection Violation**

127. Plaintiff alleges that the foregoing facts establish an equal-protection violation, including: (a) appearance-based suspicion; (b) perceived ethnicity; (c) perceived immigration status; (d) use of the registered-owner mismatch as a proxy for suspicion; (e) non-individualized suspicion; and (f) discriminatory escalation after Plaintiff asserted his rights.

128. Plaintiff further alleges that Defendants acted, at least in part, because of: (a) Plaintiff's Latino/Hispanic ethnicity; (b) Plaintiff's perceived immigration status; (c) Plaintiff's appearance; and (d) Plaintiff's known or apparent mental-health condition.

## COUNT III
## Fourth Amendment Excessive Force (Bivens)
## Objectively Unreasonable Use of Force

129. Plaintiff incorporates paragraphs 1 through 112 as though fully set forth herein.

**A. Use of Force Against a Compliant Individual**

130. Plaintiff's hands were visibly placed on the steering wheel when force was used; he made no threatening movements, possessed no weapon, did not attempt to flee, resist, or obstruct officers, and was seated, stationary, and compliant (¶ 53).

**B. Unreasonable Escalation to Major Force**

131. Supervisor Paco appeared prepared to use a soft-force technique, tapped on the window, and warned Plaintiff to brace for impact; Paco appeared to be attempting to communicate with Plaintiff and avoid immediate escalation; and, before Paco completed the maneuver, Agent Benevich took the breaching tool from Paco and struck the window with sufficient force to shatter it (¶¶ 54–56). Plaintiff alleges that the breach occurred despite his visible compliance, lack of physical aggression, and the absence of any immediate threat to officer safety, and that less intrusive alternatives existed (¶ 57).

132. Plaintiff contends that this escalation violated CBP and DHS use-of-force standards, which require that force be objectively reasonable, necessary, and proportional, and that officers use the least amount of force necessary to safely resolve a situation. Plaintiff asserts that Agent Benevich's sudden use of major force, despite the availability of alternative windows and despite Plaintiff's visible compliance, was inconsistent with CBP's Use of Force Policy Handbook and DHS use-of-force principles.

**C. Glass Dispersion and Resulting Injury**

133. The forceful breach shattered the window and dispersed glass into Plaintiff's face, eyelids, hair, and clothing, and into his footwear, with a shard later embedded in his foot (¶ 59). Plaintiff immediately experienced eye pain, visual disturbance, ringing in his ears, confusion, tunnel vision, and intermittent loss of consciousness & awareness, and required emergency medical evaluation and ophthalmic treatment (¶ 61). He was prescribed ophthalmic medication and given discharge instructions for continued care (¶¶ 77–78), yet continued during custody to experience eye pain, tunnel vision, visual disturbances, and episodes of blacking out (¶ 106).

**D. Continued Use of Authority Despite Medical Distress**

134. After the injury, Agent Benevich continued questioning and processing Plaintiff despite his reported confusion, psychiatric distress, and need for psychiatric medication, and Plaintiff was asked twice to participate in a material-witness interview despite his reported medical impairments, including eye-related symptoms, confusion, and psychiatric-medication needs (¶¶ 70–76). Plaintiff contends that this continuation delayed appropriate medical assessment and treatment.

**E. Summary of Excessive Force Elements**

135. Plaintiff alleges that the foregoing facts establish that: (a) Plaintiff was compliant; (b) his hands were visible on the steering wheel; (c) he had no weapon; (d) he posed no immediate threat; (e) force was escalated abruptly and without justification; (f) the window breach was unnecessary and disproportionate; (g) glass dispersion caused physical injury; (h) force was used despite medical distress; and (i) less intrusive alternatives existed.

136. Plaintiff further contends that the breach, resulting injury, custodial events, and lack of continuity of care aggravated his preexisting psychiatric symptoms (¶ 111).

**COUNT IV**
**Fourth Amendment Failure to Intervene (Bivens)**
**Failure to Prevent Unlawful Seizure and Excessive Force**

137. Plaintiff incorporates paragraphs 1 through 112 as though fully set forth herein.

**A. Multiple Agents Were Present**

138. Multiple CBP agents were present at the scene during the stop, detention, search, and window-breach incident. Agents surrounded Plaintiff's vehicle, assumed tactical positions, and maintained a coordinated presence for approximately 27 minutes. Plaintiff alleges that

several agents were positioned close enough to observe his visible compliance, including his hands on the steering wheel.

**B. Supervisory Participation and Authority**

139. Supervisory Border Patrol Agent Vicente Paco was present during key stages of the encounter and appeared prepared to use a soft-force technique before the window breach. Plaintiff alleges that Supervisor Paco had authority to direct subordinate agents, halt escalation, or order alternative actions, and that he participated in the inventory-search process and observed Plaintiff's medical distress after the window breach.

**C. Opportunity to Prevent Escalation**

140. Plaintiff alleges that agents had a clear opportunity to prevent the escalation to major force: Plaintiff was stationary, compliant, and visibly non-threatening; his hands were visible on the steering wheel; no weapon was present; no immediate threat existed that required breaching the window; less intrusive alternatives were available, including continued verbal communication or use of other windows; and agents observed the situation long enough to intervene before Benevich struck the window.

**D. Failure to Prevent the Use of Force**

141. Before the breach, Supervisor Paco tapped on the window and warned Plaintiff to brace for impact, which Plaintiff interpreted as recognition that a breach could create a risk of injury. Agent Benevich then took the breaching tool from Paco and struck the window with greater force, shattering it violently and dispersing glass into Plaintiff's face, eyelids, hair, and clothing (¶¶ 54–56, 59). Plaintiff experienced confusion, psychiatric distress, emotional distress, eye pain, and visual disturbances following the breach.

**E. Continued Failure to Intervene After Injury**

142. After the breach, Plaintiff reported his need for psychiatric medication, psychiatric distress, confusion, visual disturbance, eye irritation, and eye pain. Despite his reported symptoms and visible injuries, agents continued questioning and custodial processing, including a material-witness interview, while Agent Benevich continued using threatening language and conduct (¶¶ 70–76). Plaintiff alleges that other agents and supervisory personnel present failed to intervene to stop the questioning, de-escalate the interaction, or ensure that his medical and mental health needs were addressed before further processing continued.

**F. Resulting Harm**

143. As a direct and proximate result of Defendants' failure to intervene, Plaintiff suffered eye injury from glass dispersion, physical pain, emotional distress, psychiatric deterioration, humiliation, loss of liberty, and ongoing psychological harm.

**COUNT V**
**42 U.S.C. § 1985(3)**
**Conspiracy to Interfere With Civil Rights**

144. Plaintiff incorporates paragraphs 1 through 112 as though fully set forth herein.

**A. Agreement and Coordinated Conduct**

145. Defendants Andrew Coggins, Thomas Asher (K-9 Unit), and additional CBP personnel from the Sonoita Station participated in coordinated actions during the stop, detention, search, use of force, and arrest of Plaintiff.

146. Plaintiff alleges that the coordinated conduct of the responding agents—including pre-stop communications, rapid multi-agent response, supervisory participation, extended detention, tactical escalation, and the subsequent use of force—supports an inference of a shared plan, understanding, or concerted action. Plaintiff alleges that this inference is further supported

by the 27-minute period during which multiple agents congregated behind Plaintiff's vehicle, took turns interacting with him, privately conferred outside his presence, utilized role-based tasks, and later relied on shifting explanations for the stop and detention (¶¶ 27, 44).

147. Following the window breach, multiple agents and supervisory personnel observed Plaintiff reporting eye pain, visual disturbances, confusion, psychiatric distress, and the need for medical attention (¶ 70). Plaintiff alleges that no participating agent or supervisor intervened to stop continued questioning and processing, and that personnel present, including supervisory personnel, had the opportunity to secure prompt medical care, de-escalate the encounter, and suspend further questioning pending medical evaluation, but failed to do so while Plaintiff was experiencing eye pain, tunnel vision, confusion, and black-out episodes.

148. Plaintiff contends that the absence of records relating to his emergency treatment, discharge instructions, eye care, and mental-health care is consistent with a coordinated failure to ensure continuity of care and provide appropriate follow-up treatment after the injury (¶¶ 81–97).

149. The conspiracy included coordinated actions, including but not limited to:

(a) pre-stop communications between Coggins, Asher, and Sonoita Station agents;

(b) K-9 coordination, including Coggins telling Asher to "get ready" before any lawful basis existed (¶ 39);

(c) multi-agent deployment, with multiple CBP units arriving in a synchronized manner immediately upon activation of emergency lights (¶ 27);

(d) tactical positioning, with agents surrounding Plaintiff's vehicle and assuming coordinated positions;

(e) spike-strip deployment in front of Plaintiff's vehicle, which Plaintiff alleges restricted movement and reinforced coercive authority;

(f) coordinated detention and escalation, including maintaining a multi-agent presence behind Plaintiff's vehicle for approximately 27 minutes without developing individualized reasonable suspicion;

(g) shifting justifications, including changing the stated basis for the stop from a traffic-related rationale to an immigration-related rationale despite the absence of immigration-related questioning (¶ 24);

(h) documentation irregularities, including omission of a body-camera serial number and investigative summaries containing timeline inconsistencies (¶¶ 62–63);

(i) failure to ensure that Plaintiff's emergency-department discharge instructions, prescriptions, and follow-up treatment recommendations were received, transmitted, preserved, and implemented following his emergency treatment;

(j) failure to provide continuity of care after Defendants became aware that Plaintiff had received emergency medical treatment for injuries sustained during the window breach;

(k) subsequent assertions that no record existed of Plaintiff's emergency-department discharge instructions, despite Plaintiff having been transported for emergency medical evaluation and treatment (¶ 91);

(l) subsequent assertions that CAFCC possessed no record of Plaintiff's eye-treatment records or mental-health records, despite Defendants' knowledge that Plaintiff had reported eye injuries, visual disturbances, psychiatric distress, and a need for continued care (¶ 92); and

(m) failure of participating agents, supervisors, detention personnel, medical personnel, and other responsible individuals to ensure that continuity-of-care information accompanied Plaintiff following emergency treatment.

150. Plaintiff alleges that these coordinated actions support a plausible inference of a shared plan and mutual understanding among Defendants.

**B. Purpose and Effect of the Conspiracy**

151. Plaintiff alleges that the conspiracy had the purpose or effect of depriving him of:

(a) the right to receive reasonable medical attention following a known injury and emergency medical treatment;

(b) the right to continuity of care following emergency medical treatment, including the receipt, transmission, preservation, and implementation of discharge instructions, prescriptions, and follow-up treatment recommendations;

(c) the right to be free from coordinated interference with medically necessary treatment and follow-up care after Defendants became aware of Plaintiff's injury and ongoing medical needs; and

(d) the right to be free from retaliatory treatment based upon prior complaints, grievances, records requests, administrative claims, or other protected activity.

152. Plaintiff alleges that the purpose and effect of the coordinated conduct was to deprive Plaintiff of constitutional protections, interfere with Plaintiff's ability to exercise those protections, and prevent the proper transmission, preservation, communication, and implementation of medical information necessary to ensure continuity of care following Plaintiff's injury and emergency medical treatment.

**C. Retaliatory Motive and Prior Protected Activity**

153. Plaintiff alleges that certain Defendants were aware of his prior complaints, records requests, and administrative claims concerning earlier Border Patrol encounters, and that such awareness is relevant to motive, intent, and retaliatory conduct (¶¶ 10–14).

154. Plaintiff contends that retaliatory animus is not a criminal charge by itself but is a prohibited motive under CBP and DHS policy and is recognized as relevant to federal civil-rights violations under 42 U.S.C. §§ 1985(3) and 1986. Plaintiff alleges that, after asserting his rights, Defendants escalated the encounter; prolonged the detention; continued investigative processing despite Plaintiff's reported medical and psychiatric needs; compelled participation in a material-witness interview despite ongoing confusion, eye discomfort, and requests for medical attention; and failed to ensure continuity of care following emergency medical treatment. Plaintiff further alleges that the timing and sequence of these actions support an inference that the exercise of protected rights contributed to the treatment Plaintiff received. (¶¶ 51–52).

**D. Class-Based, Discriminatory Animus**

155. Plaintiff alleges that Defendants' actions were motivated, at least in part, by class-based and discriminatory animus, including animus based upon: (a) Plaintiff's Hispanic ethnicity; (b) Plaintiff's perceived immigration status; (c) Plaintiff's known or apparent Serious Mental Illness, mental-health needs, and psychiatric disability; and (d) the perceived mismatch between Plaintiff's appearance and the female registered owner of the vehicle. Plaintiff further alleges that Defendants relied upon appearance-based assumptions and non-individualized suspicion rather than specific, articulable facts tied to Plaintiff personally (e) Coggins specifically highlighted the registered owner's name, Sarah May Meschede gender, and registration information.

155 A. Plaintiff further notes that official investigative materials specifically highlighted the registered owner's name, Sarah May Meschede gender, and registration information. Plaintiff contends that the perceived mismatch between the female registered owner and Plaintiff's appearance became a focal point of the investigation despite the existence of commonplace and innocent explanations for the mismatch. Plaintiff further alleges that appearance-based assumptions concerning Plaintiff's ethnicity and perceived immigration status contributed to the decision to continue the investigation and initiate an "immigration inspection" despite the absence of individualized reasonable suspicion

156. Plaintiff alleges that these characteristics were known, apparent, or reasonably should have been known to Defendants through Plaintiff's statements, requests for psychiatric medication, requests for medical attention, observed symptoms, reports of confusion, psychiatric distress, and interactions during custody. Plaintiff further alleges that these characteristics made him particularly vulnerable during the encounter and during the period following his injuries. Plaintiff contends that Defendants nevertheless prioritized detention, questioning, investigative processing, and material-witness interviews over his reported medical and psychiatric needs.

156 A. Race/Ethnicity Documentation Discrepancy. Canyon Vista records identify Plaintiff's race as "Black or African American" and ethnicity as "Non-Hispanic or Latino." Plaintiff disputes the accuracy of those demographic entries. Plaintiff does not presently know the source of the information, who entered the information, whether it was imported from another system, or whether it was manually entered during intake. Plaintiff therefore contends that the demographic fields constitute additional documentation inconsistency warranting discovery and review of the underlying intake process and EHR audit trail.

**E. Overt Acts in Furtherance of the Conspiracy**

157. In furtherance of the conspiracy, Plaintiff alleges that Defendants committed overt acts, including but not limited to:

(a) initiating an unlawful stop without reasonable suspicion;

(b) coordinating a multi-unit response without lawful basis;

(c) deploying a K-9 unit without documented justification;

(d) breaching Plaintiff's vehicle window and causing injury;

(e) conducting a non-consensual, warrantless search;

(f) detaining Plaintiff without probable cause;

(g) continuing the detention after Plaintiff disclosed U.S. citizenship;

(h) failing to provide medical and psychiatric care despite visible distress;

(i) compelling Plaintiff to participate in questioning despite medical impairment;

(j) transferring Plaintiff to CoreCivic custody, where Plaintiff alleges medical neglect continued;

(k) preparing incomplete, misleading, or false reports to justify the alleged unlawful conduct;

(l) preparing supervisory documentation containing timeline inconsistencies and omissions, including the omission of the Axon body-worn-camera serial number by Supervisor Paco;

(m) failing to ensure that emergency-department discharge instructions were received, transmitted, preserved, and implemented;

(n) failing to ensure continuity of care following Plaintiff's emergency medical treatment;

(o) failing to provide prescribed ophthalmic medication and follow-up treatment after Defendants became aware of Plaintiff's injury;

(p) continuing custodial processing, delay and questioning despite Plaintiff's reported eye injury, psychiatric distress, confusion, tunnel vision, and black-out episodes;

(q) failing to intervene after Plaintiff reported ongoing medical and psychiatric symptoms;

(r) transferring Plaintiff into detention without ensuring that medical information, prescriptions, and discharge instructions accompanied him;

(s) maintaining or permitting conditions under which records concerning Plaintiff's eye treatment, mental-health care, discharge instructions, or follow-up treatment could not later be located; and

(t) representing that no record existed of Plaintiff's emergency-department discharge instructions, eye-treatment records, or mental-health records despite Defendants' awareness of his emergency medical treatment (¶¶ 90–92).

**F. Resulting Harm**

158. As a direct and proximate result of Defendants' conspiracy, Plaintiff suffered physical injury, eye injury, emotional distress, psychiatric deterioration, humiliation, loss of liberty, and ongoing psychological harm.

**COUNT VI**
**42 U.S.C. § 1986**
**Neglect to Prevent Conspiracy**

159. Plaintiff incorporates paragraphs 1 through 112 as though fully set forth herein.

160. Plaintiff alleges that one or more Defendants knew, or reasonably should have known, of the wrongful acts and coordinated conduct described in Count V.

161. Multiple agents and supervisory personnel were present during the detention, questioning, window breach, injury, emergency medical events, and subsequent custodial processing. Plaintiff alleges that these individuals had the ability and opportunity to intervene, prevent, discourage, or mitigate the conduct described above.

162. Despite observing Plaintiff's reported eye injury, visual disturbances, psychiatric distress, confusion, requests for medical assistance, requests for psychiatric medication, and ongoing symptoms, Defendants failed to intervene. Defendants further failed to ensure that Plaintiff received continuity of care following emergency medical treatment, including the receipt, transmission, preservation, and implementation of discharge instructions, prescriptions, and follow-up treatment recommendations, and failed to ensure that appropriate medical information, discharge instructions, prescriptions, and follow-up recommendations accompanied Plaintiff despite knowledge of his injury and ongoing need for care (¶¶ 81–97).

163. Plaintiff further alleges that certain Defendants possessed the authority to prevent, correct, report, or remedy the conduct described herein but neglected or refused to do so.

164. As a result, Plaintiff suffered physical injury, psychological injury, emotional distress, worsening psychiatric symptoms, delay of medical treatment, and other damages.

## VI. DAMAGES

As a direct and proximate result of Defendants' acts and omissions, Plaintiff suffered damages including, but not limited to:

1. Physical injuries arising from the vehicle-window breach and resulting glass exposure;

2. Eye pain, visual disturbances, tunnel vision, and continuing visual symptoms;

3. Delay in receiving prescribed ophthalmic treatment and follow-up medical evaluation;

4. Interruption and breakdown of continuity of care following emergency medical treatment;

5. Emotional distress, mental anguish, anxiety, and psychological suffering;

6. Aggravation and exacerbation of preexisting psychiatric conditions, including symptoms associated with Plaintiff's documented Serious Mental Illness;

7. Confusion, black-out episodes, worsening psychiatric symptoms, and related mental-health injuries;

8. Pain and suffering, both past and future;

9. Loss of enjoyment of life and loss of normal daily functioning;

10. Expenses and damages according to proof;

11. Other economic and non-economic damages to be proven at trial.

Plaintiff continues to experience physical, emotional, psychological, and other injuries and alleges that some or all of these injuries may be permanent in nature.

## VII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that the Court enter judgment in his favor and against Defendants and award:

A. Compensatory damages in an amount to be determined at trial;

B. General damages according to proof;

C. Special damages according to proof;

D. Damages for pain, suffering, emotional distress, and mental anguish;

E. Damages for aggravation of preexisting medical and psychiatric conditions;

F. Damages arising from interruption of continuity of care and delayed medical treatment;

G. Punitive damages against those Defendants for whom such damages are legally available;

H. Costs of suit and allowable litigation expenses;

I. Prejudgment and post-judgment interest as permitted by law;

J. Declaratory relief as the Court deems appropriate;

K. Such other and further relief as the Court deems just and proper.

## VIII. JURY DEMAND

Plaintiff demands a trial by jury on all issues so triable.